COUNCIL MEMBERS
Joe Goethals, Mayor
Eric Rodriguez, Deputy Mayor
Rick Bonilla
Diane Papan
Amourence Lee

City of San Mateo
Regular Meeting Minutes
City Council

City Hall
330 W. 20th Avenue
San Mateo CA 94403
www.cityofsanmateo.org

Monday, June 1, 2020
Remote 7:00 PM
Regular Meeting

CALL TO ORDER This meeting is being held under the provisions of State of California Governor Gavin Newsom's Executive Order N-29-20; in which Brown Act regulations are relaxed to allow members to remote in due to the Coronavirus Covid-19 health emergency.

Pledge of Allegiance

Roll Call

Remote: Mayor Goethals, Deputy Mayor Rodriguez, Council Members: Bonilla, Papan and Lee

CEREMONIAL

1. Proclamation: Pride Month

2. Proclamation: "Make Some Noise for the Class of 2020!" Celebration June 12, 2020

CONSENT CALENDAR

The following items, 3 through 11, were considered to be routine by the City Council. After the titles of the items were read by the City Clerk, the public was invited to comment and there were no speakers. Motion passed 5-0.

Moved: Bonilla, Seconded: Lee
Ayes: Goethals, Rodriguez, Bonilla, Papan and Lee
Noes: None

3. City Council Meeting Minutes – Approval
Approve the minutes of the City Council Special and Regular meeting of May 18, 2020.

4. Coronavirus Emergency Supplemental Funding Program – Grant Acceptance
Adopt a Resolution to accept an award in the amount of $58,562 from the Coronavirus Emergency Supplemental Funding Program; authorize execution of all required documents; and appropriate funds to the Police Grants Budget Program.

Enactment: Resolution No. 48 (2020)

5. Board and Commission – Establish Annual Appointment Subcommittees
Appoint Mayor Goethals and Council Member Lee to the Park & Recreation Commission and Senior Citizens Commission Appointment Subcommittees and appoint Mayor Goethals and Council Member Rodriguez to the Sustainability and Infrastructure Commission Appointment Subcommittee.

6. Fiscal Year 2020-21 General Obligation Bond – Tax Rate Levy
Adopt a Resolution to levy the property tax rate of $0.0067 per $100 of assessed value (equates to $6.70 per $100,000 assessed value) for the voter-approved general obligation bond annual debt service payment.

Enactment: Resolution No. 49 (2020)

7. Police Department Verizon Wireless Expenses for City-Issued Cell Phones, Equipment, and Service – Change Order
Approve a change order to the San Mateo Police Department's purchase order with Verizon Wireless for an additional $31,877.16 to cover the estimated remaining cost of service through June 2020 for city-issued cell phones, equipment, and service, bringing the cumulative amount for FY 2019-2020 to $121,877.16; and authorize the City Manager to approve costs of cumulative service in subsequent Fiscal Years, which are anticipated to exceed $100,000 annually.

8. Downtown Business Improvement Area – Resolution of Intent for Annual Renewal
Accept the fiscal year 2019-20 Downtown San Mateo Association Annual Report; adopt a Resolution of Intent to Levy the Annual Assessments for the Downtown Business Improvement Area; and set a public hearing for the June 15, 2020 City Council meeting to consider levying the annual assessment.

Enactment: Resolution No. 50 (2020)

9. Downtown Parking Garage Pedestrian Safety Project – Agreement
Approve a professional design services agreement with Advanced Mobility Group for Phase 1 of the Downtown Parking Garage Pedestrian Safety Project, with an option to amend the agreement to include Phase 2, for a total agreement amount not-to-exceed $120,000; and authorize the Public Works Director to execute the agreement in substantially the form presented.

10. Rail Shuttle Bus Service Administration Agreement – Amendments
Approve Amendment No. 6 to the Campus Drive Rail Shuttle Bus Service Administrative Agreement and Amendment No. 6 to the Norfolk Area Rail Shuttle Bus Service Administrative Agreement with Peninsula Corridor Joint Powers Board for extension of shuttle operations for a total of $75,500, and authorize the Public Works Director to execute the amendments in substantially the form presented.

11. Trash Capture at Poplar Avenue at the Golf Course Project – Appropriation and Agreement
Adopt a Resolution to accept funding and appropriate $330,000 to the Trash Capture at Poplar Avenue at the Golf Course Project; approve a cooperative agreement for Caltrans to contribute a total amount of $330,000 for the design and construction of the project; and authorize the Public Works Director to execute the agreement in substantially the form presented.

Enactment: Resolution No. 51 (2020)

PUBLIC COMMENT

Heather Cleary, CEO Peninsula Family Services, stated the need to speak up to injustice; Thomas Weissmuller stated the need to keep San Mateo peaceful.

PUBLIC HEARING

12. Proposed 2020-21 Budget and 2020-25 Capital Improvement Program – Review

Finance Director Rich Lee provided an overview of the proposed 2020-21 budget and the 2020-25 Capital Improvement Program. Council asked questions of staff. The Mayor opened the Public Hearing, there were no speakers. The Mayor closed the Public Hearing. Discussion ensued on taking a measured approach to the budget and continuing to provide essential community services in these tough economic times due to the impacts of COVID-19, and timing of revenue enhancements. It was noted that the budget will be presented for adoption at the June 15, 2020 regular City Council meeting and a review of service levels will be brought to Council for review in October.

OLD BUSINESS

13. COVID-19 Update (#10)

City Manager Drew Corbett provided an update on operational impacts and other City efforts related to COVID-19. Council asked questions of staff. Public Comment – Kelly Moran expressed appreciation for staff's work on the slow streets in Bay Meadows. Council confirmed the adjustments to operations taken in response to the emergency proclamation including adjustments to parking enforcement. Motion passed 5-0.

Moved: Bonilla, Seconded: Goethals
Ayes: Goethals, Rodriguez, Papan, Bonilla, and Lee
Noes: None

NEW BUSINESS

14. Police Department Technology – Update

Police Sergeant Shannon Hagan provided an update on Police Department technology, including proposed use of fixed automated license plate readers (ALPR) and implementation of a small Unmanned Aircraft System programs. He noted that the program is funding from the asset forfeiture fund with no impact to the general fund. Council asked questions of staff. Public Comment – K. Preiser commented on the need to protect citizen's rights; Adam Loraine stated appreciation for the police to innovate with reasonable cost and various citizen protection techniques; and Doug Monterrosa asked about what discretion is used when deploying ALPR. Thomas Weissmuller asked if data collected would be used with other law enforcement agencies. Council provided comments in support of the programs and asked that it be brought back to report to Council after a year of experience with these programs. Council expressed appreciation for the presentation and thoughtful program and noted the community's concern with the technology and privacy should be addressed in a very transparent way.

15. Open Container and Outdoor Dining in Public Right of Way – Ordinance Introduction

Management Fellow Denise Garcia and Assistant City Manager Kathy Kleinbaum provided a presentation on the need for outdoor dining to meet social distancing requirements due to COVID-19 pandemic. Council asked questions of staff. Public Comment – Adam Loraine expressed an interest in full street closures; Doug Monterrosa, vendor for the City's street sweeping contract, suggested barricades and use of plastic; Erika Powell, expressed enthusiasm for this step.

Introduce an Ordinance to amend the San Mateo Municipal Code Section 10.04.080, "Drinking – Public Areas," to allow for alcohol consumption in the public right of way under specific permitted conditions, such as street closures for special events or outdoor dining for restaurants. Motion passed 5-0.

Moved: Papan, Seconded: Rodriguez
Ayes: Goethals, Rodriguez, Papan, Bonilla, and Lee
Noes: None

REPORTS AND ANNOUNCEMENTS

The City Manager, City Attorney and Council Members reported on their various assignments and liaison roles.

Mayor Goethals noted that the Council had received a request from the proponents of the alternative initiative to the extension of Measure P that had qualified to gather signatures and then the City went into shelter-in-place for three months and they lost the opportunity to get signatures for their alternative measure. The proponents have requested that Council place their proposed initiative on the November 2020 ballot as a competing measure to the extension of Measure P. Mayor Goethals proposed a study session on this for June 15, 2020. Council concurred.

Mayor Goethals asked about a possible closed session on June 15 for the Prometheus project at the former Trag's site due to some legal issues that has cropped up. Council concurred.

CLOSED SESSION - RECONVENE TO CLOSED SESSION

Following the opportunity for public comment, there were no speakers, the Council convened into closed session to consider:

16. Conference with Legal Counsel-Existing Litigation
(Paragraph (1) of Subdivision (d) of Government Code Section 54956.9) Workers' Compensation Claim Gregory Moore

ADJOURNMENT

The meeting adjourned at 10:11 p.m.

APPROVED BY:

Joe Goethals, Mayor

SUBMITTED BY:

Patrice M. Olds, City Clerk